MASTER SOFTWARE-AS-A-SERVICE AGREEMENT

Effective Date: October 1, 2026

This Master Software-as-a-Service Agreement ("Agreement") is entered into by and between **CloudScale Technologies Inc.**, a Delaware corporation having its principal office at 500 Cloud Way, San Francisco, CA ("Vendor"), and **Enterprise Dynamics LLC**, a New York corporation ("Customer").

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1. SUBSCRIPTION SERVICES & ACCESS

Vendor grants Customer a non-exclusive, non-transferable right to access and use the CloudScale Enterprise Platform during the Term. Customer shall not sublicense, reverse engineer, or decompile the software.

2. TERM, AUTOMATIC RENEWAL & TERMINATION

The Initial Term of this Agreement shall be twelve (12) months commencing on the Effective Date. **This Agreement shall automatically renew for successive thirty-six (36) month renewal terms** unless Customer provides written notice of non-renewal at least one hundred and eighty (180) calendar days prior to the expiration of the then-current term.

Customer may not terminate this Agreement for convenience under any circumstances. In the event of Customer breach, Vendor may immediately terminate access without notice.

3. FEES, INVOICING & PRICE INCREASES

Customer agrees to pay all subscription fees within fifteen (15) days of receipt of invoice. Late payments shall incur a monthly finance charge of 2.5% or the maximum permitted by law. **Vendor reserves the right in its sole discretion to adjust subscription pricing and fees upon thirty (30) days notice**, without requiring Customer consent or amendment.

4. INTELLECTUAL PROPERTY & DATA RIGHTS

Vendor retains all right, title, and interest in and to the Platform. Customer grants Vendor an irrevocable, perpetual, royalty-free, worldwide license to utilize Customer data, telemetry, and uploaded content to train, develop, and commercialize Vendor artificial intelligence models and derivative works.

5. INDEMNIFICATION (UNILATERAL OBLIGATION)

Customer shall defend, indemnify and hold harmless Vendor, its officers, directors, employees, and affiliates from and against any and all claims, demands, liabilities, damages, losses, costs, and expenses (including attorneys' fees) arising out of or related to Customer's use of the Platform or alleged breach of this Agreement. **Vendor provides no indemnification whatsoever** to Customer for intellectual property infringement or third-party claims.

6. LIMITATION OF LIABILITY & DAMAGES DISCLAIMER

TO THE MAXIMUM EXTENT PERMITTED BY LAW, **VENDOR'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL BE STRICTLY LIMITED TO ONE HUNDRED DOLLARS ($100.00 USD)**. IN NO EVENT SHALL VENDOR BE LIABLE FOR ANY CONSEQUENTIAL, INDIRECT, INCIDENTAL, OR PUNITIVE DAMAGES.

NOTWITHSTANDING THE FOREGOING, **CUSTOMER'S LIABILITY FOR BREACH, INDEMNIFICATION, OR UNPAID FEES SHALL BE ENTIRELY UNLIMITED**, AND SHALL NOT BE SUBJECT TO ANY MONETARY CEILING OR WAIVER OF INDIRECT DAMAGES.

7. GOVERNING LAW & ARBITRATION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to conflicts of law principles. Any dispute arising hereunder shall be resolved exclusively through binding arbitration conducted in Wilmington, Delaware.